Joe Esparza, Chairman and Commissioner
Representing Employers

Alberto Treviño III, Commissioner
Representing Labor

Brent Connett, Commissioner Representing the Public

Steve Pier, Executive Director

Request for Proposal (RFP)

For

Short Duration Training Events for VR Customers

Solicitation No. 3202600171

Date of Release: June 12, 2026

Responses Due: July 24, 2026, by 10:00 a.m. Central Time

924-86 Vocational Training, All Types, Including Vocational Rehabilitation and Technical Education

Sole Point of Contact for this RFP

Corie Remschel CTCD, CTCM

Procurement Lead

VendorProposals@twc.texas.gov

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DEFINITIONS

As used in this Solicitation, unless a different definition is specified or the context clearly indicates otherwise, the following terms have the meanings assigned below:

Table 1: Definitions

Term/Acronym	Definition
ACVREP	Academy for Certification of Vision Rehabilitation & Education Professionals
Addendum	A written addition, change, or supplement to this Solicitation that is posted to the ESBD and issued prior to the response due date.
Additional Evaluation Activities	Include Oral Presentations, Clarifications, Discussions, Proofs of Concept, Demonstrations, and/or Site Visits. These Additional Evaluation Activities follow the evaluation of the written Proposals and may be utilized by TWC to evaluate and ensure specifications meet TWC's needs as outlined in the Solicitation. Additional Evaluation Activities provide an opportunity for Respondents to highlight the strengths and unique aspects or clarify their Responses. These activities may be scored, as indicated in RFP Section 5.7 Discussions and Revised Responses.
AT	Assistive Technology
BAFO	Best and Final Offer

Term/Acronym	Definition
Business Day	The day and hours (Monday through Friday, 7 a.m. to 6:00 p.m. Local Time) in which TWC is open for business. TWC is closed for business on the scheduled holidays indicated by the State Auditor's Office available at https://hr.sao.texas.gov/holidays/. The terms "Working Day" and "Business Day" may be used interchangeably. All uncapitalized references to "day" shall mean calendar day.
Competitive Range	Consists of the Responses that have a reasonable chance of being selected for award based on the evaluation criteria and the best value criteria as stated in this Solicitation.
Contract	Means the written agreement entered into by TWC and Successful Respondent, which will incorporate the contents of this Solicitation and the Successful Respondent's Response, except as may be provided in the Contract and any amendments thereto.
Contract Term	Means the definite period of time that the Contract will remain in effect.
CTCD	Certified Texas Contract Developer.
CTCM	Certified Texas Contract Manager.
ESBD	The Electronic State Business Daily. An online platform administered by the Statewide Procurement Division (SPD) of the Comptroller of Public Accounts (CPA). The ESBD may be accessed as https://www.txsmartbuy.gov/esbd
Final Written Response Score	Refers to the final scoring of the Solicitation based on the Scoring Matrix published in the Solicitation.

Term/Acronym	Definition
Fiscal Year (FY)	Texas State Fiscal Year, September 1 through August 31.
GED	General Educational Development
VHSP	VetHUB Subcontracting Plan. Written documentation regarding the use of subcontractors, which is required to be submitted with all solicitations for state agency contracts with an expected value of $100,000 or more and where TWC has determined subcontracting opportunities are probable. The HSP subsequently becomes a provision of the awarded Contract and shall be monitored for compliance by TWC during the term of the Contract.
IL	Independent Living
ILP	Independent Living Plan
IPE	Individualized Plan for Employment
Local Time	Central Standard Time (CST) or Central Daylight Time (CDT), as is then prevailing in Austin, Texas.
NBPCB	National Blindness Professional Certification Board
NIGP	National Institute of Governmental Purchasing
Offered Option	Options that are not requested in a response to this Solicitation but may be identified by a Respondent and included in its Response. A Respondent is not obligated to include an Offered Option in its Response. This is an opportunity for Respondents to offer options that TWC may not have been aware of at the time this Solicitation was written. TWC makes no commitment to quantity or timing of acquisition of Offered Options and Offered Options are not considered during evaluation of Responses.

Term/Acronym	Definition
OIB	Older Individuals who are Blind
O&M	Orientation & Mobility
OT	Occupational Therapist
Pre-ETS	Pre-Employment Transition Services
PS	Purchasing Services, a section within TWC
PO	Purchase Order
POA&M	Plan of Action and Milestones
POCN	Purchase Order Change Notice
Respondent	The individual or entity that submits a Response to this Solicitation. The term includes anyone acting on behalf of the individual or entity that submits a Response, such as an agent, employee, and representative. Also referred to a "Vendor."
Response	A Respondent's response to this Solicitation.
RFP	Request for Proposal. A formal solicitation document issued by TWC to the vendor community requesting a response for goods or services. (This document.)
SA	Service Authorization
Solicitation	This RFP, including all exhibits, attachments, forms, and Addenda, if any. May include Requests for Revised Proposals (RFRP) or Best and Final Offer (BAFO) RFPs, if issued.
State	The State of Texas and its instrumentalities, including TWC, its officers, employees, or authorized agents, and any other state agencies.

Term/Acronym	Definition
Subcontractor	Any entity(ies) or person(s) providing goods or services under the Contract on Respondent's behalf, whether or not the entity(ies) or person(s) has/have a written agreement with the Respondent. The term does not include a state agency. The term includes an officer or employee of a state agency when the officer or employee contracts with a vendor in a private capacity.
Successful Respondent	The Respondent with whom the TWC executes a Contract to provide the goods and/or services that this Solicitation requires.
TBOTE	Texas Board of Occupational Therapy Examiners
TWC	Texas Workforce Commission.
VetHUB	Veteran Heroes United in Business, as defined by Chapter 2161 of the Texas Government Code and Title 34 of the Texas Administrative Code (TAC), § 20.282.
VPTS	Vendor Performance Tracking System, as described under Texas Government Code § 2262.055 and 34 TAC § 20.115. Reporting requirements and vendor performance factors considered in VPTS are described in Texas Government Code § 2155.089 and 34 TAC § 20.509. The VPTS is available at: https://www.txsmartbuy.gov/vpts.

Term/Acronym	Definition
Vocational Rehabilitation Counselor (VRC)	a qualified Vocational Rehabilitation Counselor employed by TWC to lead the customer in the process of gaining skills and services needed for the customer to prepare for, secure, retain, or regain employment consistent with the customer's unique strengths, resources, priorities, concerns, abilities, capabilities, interests, and informed choice.
Vocational Rehabilitation Division (VRD)	Provides expertise, services, and support to help people with disabilities achieve their employment and independent living goals. VRD administers four programs, including Vocational Rehabilitation, Independent Living Services for Older Individuals who are Blind, Business Enterprises of Texas, and Purchasing from People with Disabilities.
Vocational Rehabilitation (VR) Program	a joint state and federally funded program to assess, plan, develop, and provide VR services for eligible individuals with disabilities, consistent with their unique strengths, resources, priorities, concerns, abilities, capabilities, interests, and informed choice so that these individuals can prepare for and engage in competitive integrated employment and achieve economic self-sufficiency.

ARTICLE I PURPOSE

The Texas Workforce Commission (TWC) is accepting proposals to establish contracts with qualified entities, including for-profit companies, nonprofit organizations, and private colleges and universities, to deliver instructor-led, short-duration training to Vocational Rehabilitation (VR) customers. These training services are designed to enhance vocational skills, support employment outcomes, and promote customer independence. Training durations typically range from one (1) to four (4) weeks but may extend up to six (6) months depending on the customer's individualized employment plan. Procurement Services (PS) will administer the procurement process for this Solicitation, which includes Solicitation publication, handling of communications from vendors, as well as managing the receipt of Proposals for review and evaluation.

Information regarding TWC and its programs is available online and can currently be accessed at www.twc.texas.gov.

ARTICLE II SCOPE OF WORK

2.1 OVERVIEW/BACKGROUND

The TWC Vocational Rehabilitation Division (VRD) serves customers by referring them to training services designed to help individuals explore, develop, and attain skills that support competitive integrated employment or independent living. Referrals are based on each customer's employment or education goals as outlined in their Individualized Plan for Employment (IPE) or Independent Living Plan (ILP).

Respondent must affirm its intent to comply with the requirements as stated in Section 2.2 Specifications, and affirm that it will continue to comply with

these requirements during the term of the Contract issued as a result of this Solicitation, if any.

2.2 SPECIFICATIONS

2.2.1 Training Entity Responsibilities

a. Providing instructor-led short duration training events for VR customers. Training solutions may fall into the categories of Pre-Employment Transition Services (Pre-ETS), Blind, Visually Impaired and/or Deafblind Services, Neurodevelopmental or Autism services, Deaf and Hard of Hearing or an "other" category as described below.
b. Providing training services that are designed to assist VR customers with disabilities to obtain knowledge and skills that prepare them to obtain, retain, or advance in competitive integrated employment or independent living, and may also prepare VR customers with the prerequisite knowledge, skills, and abilities to participate in postsecondary education, leading to competitive integrated employment.
c. Utilizing instructors who are knowledgeable and experienced in the subject matter contained in the curriculum, are appropriately degreed, licensed, certified, or otherwise qualified in the areas pertinent to the training services and have experience working with individuals with the disabilities for which the training is designed.
d. Utilizing curriculum and other training materials that are accessible and accommodating for the VR customer enrolled in the program.
e. Providing VR customers with effective instructional and technical support whether the training is conducted in-person or virtually.
f. Providing a primary point-of-contact (POC) for the contract who is knowledgeable about the contract requirements and training services.

g. Administering pre-event and post-event surveys to address the customer's level of knowledge prior to the training and following the training, the customer's satisfaction with the training, including any comments made by the customer regarding the training. The format and contents of the surveys will be mutually agreed to by TWC and the training entity prior to the initial training courses.
h. Informing the VR customer's assigned vocational rehabilitation counselor (VRC) or Older Individuals who are Blind (OIB) Service Specialist, within forty-eight (48) hours of any dispute that arises between the VR customer and the entity regarding the training services, and the steps the entity has taken or is planning to take to resolve the issue.

2.2.2 Training Categories, Audience Served, Sample Activities, and Instructor Qualifications

Training services may include, but are not limited to, the following types or a combination thereof. Sample activities are intended to indicate suggested areas of training and are not exhaustive.

2.2.2.1 Pre-Employment Transition Services (Pre-ETS)

For secondary or post-secondary students with disabilities (ages 14–22)

1. **Sample Activities:**

    a. Career Exploration
    b. Work-based learning experiences, which may include in-school or after-school opportunities and experiences outside of the traditional school setting
    c. Counseling opportunities for enrollment in postsecondary educational programs

d. Workplace readiness training to develop social skills and independent living skills
e. Instruction in self-advocacy
f. Science, technology, engineering, and mathematics (STEM)

Note: Responses will not be considered from current TWC-VR Pre-ETS contractors with enrollment contracts, who could otherwise provide the short duration training under the enrollment contract. Proposals may be considered from current TWC-VR Pre-ETS contractors where their contract is insufficient to provide the training (e.g., a venue must be secured).

2. **Instructor Qualifications:**

a. Possess a minimum of one (1) year of experience working directly with students with disabilities in a classroom setting, providing direct instruction and/or support to students and staff. This experience MUST be verified by official letters from previous employers on company letterhead. Each letter must include dates of employment, job title, a detailed description of relevant duties, and contact information for the employer; **or**
b. Possess a bachelor's or master's degree from an accredited college or university in Counseling, Vocational Rehabilitation, Education, or Social Work.

Note: TWC-VR may request a copy of the instructor's official transcript to verify the education requirement.

2.2.2.2 Blind, Visually Impaired and/or Deafblind Services

For VR customers with a primary disability of blindness, low vision, and/or who are deafblind.

1. Sample Activities:

a. Orientation & Mobility Skills
b. Independent living skills (including IL for Older Individuals who are Blind)
c. Occupational skills training, including employment-focused technology skills
d. Language and Communication Skills, including:

   i. American Sign Language (ASL) proficiency
   ii. Deafblind communication training

e. Braille proficiency
f. Technology and assistive technology training
g. Adjustment to Blindness Counseling
h. STEM
i. Business Enterprise Program operations

2. Instructor Qualifications:

A qualified trainer is an Independent Living (IL) Skills Trainer, Orientation & Mobility (O&M) Instructor, Assistive Technology (AT) Trainer, or Occupational Therapist (OT) possessing the qualifications below:

a. IL Skills Trainer Qualifications:

Bachelor's degree from an accredited college or university with a concentration in rehabilitation, education, psychology, or a related field with:

   i. One (1) year of work experience in rehabilitation teaching, rehabilitation, or education of people with disabilities; or

ii. Two (2) years of work experience in general education or another related field; and

iii. Experience providing individual, hands-on training to individuals who are blind, visually impaired, and/or deafblind customers

b. O&M Instructor Qualifications:

i. Certification from Academy for Certification of Vision Rehabilitation & Education Professionals (ACVREP) or National Blindness Professional Certification Board (NBPCB); or

ii. Degree in Orientation and Mobility (O&M) from an accredited college or university with an established O&M training curriculum; or

iii. Two (2) years of full-time experience teaching O&M skills for a VR-recognized entity.

c. Trainer Qualifications:

i. High school diploma or General Educational Development (GED).

ii. At least six (6) months of full-time work experience providing direct customer services to individuals who are blind, deafblind, and/or visually impaired.

iii. Six (6) months of personal end-user experience with magnification or reader software (JAWS, ZoomText, Fusion) may substitute for work experience.

d. OT Qualifications:

i. Completion of a prescribed program of study in a professional field such as social work, occupational therapy, therapeutic recreation, or rehabilitation counseling; and

ii. Maintain an Occupational Therapy license in good standing from the Texas Board of Occupational Therapy Examiners (TBOTE)

Notes:

- Exceptions may be granted based on demonstrated experience.
- TWC-VR may request official transcripts to verify education requirements.

2.2.3 Neurodevelopmental and Autism Services

For individuals with a primary diagnosis of autism spectrum disorder who have obtained a high school diploma or GED.

1. **Sample Activities:**

   a. Work readiness training
   b. Independent living skills
   c. Assistive technology training
   d. Occupational skills training, including employment-focused technology skills
   e. Work-based learning
   f. Disability-specific employment preparation and adaptive training
   g. STEM

2. **Instructor Qualifications:**

   a. Employment Specialist with verified UNTWISE Autism Endorsement
   b. Certified Special Education teacher
   c. Licensed Specialist in School Psychology (LSSP)
   d. School Speech Pathologist

Notes:

- Exceptions may be granted based on demonstrated experience.
- TWC-VR may request official transcripts.

2.2.4 Deaf and Hard of Hearing Services

For VR customers with a primary disability of deaf or hard of hearing over age 22 and primary mode of communication is sign language.

1. **Sample Activities:**
    a. Occupational skills training, including employment-focused technology skills
    b. Language and Communication Skills, including:
        i. American Sign Language (ASL) proficiency
        ii. How to utilize interpreting service and/or CART
    c. Technology and assistive technology training
    d. Disability-specific employment preparation and adaptive training
2. **Instructor Qualifications:**
    a. State-certified teacher of deaf and hard of hearing
    b. DHHS-approved specialist working in DHH-related field
    c. proof of proficiency in sign language by providing documentation of certification from the Board for Evaluation of Interpreters (BEI), certification from the Registry of Interpreters for the Deaf (RID), or a Sign Language Proficiency Interview (SLPI) rating of intermediate plus.

Notes:

- Exceptions may be granted based on demonstrated experience.
- TWC-VR may request official transcripts to verify education requirements.

2.2.5 "Other" Training

Disability-specific training services not included in categories 2.2.1–2.2.4.

1. **Sample Activities:**
    a. Work readiness training
    b. Independent living skills
    c. Assistive technology training
    d. Occupational skills training, including employment-focused technology skills
    e. Work-based learning (paid/unpaid work experience, internships, pre-apprenticeships, apprenticeships)
    f. Disability-specific employment preparation and adaptive training
    g. STEM
2. **Instructor Qualifications:**

To be assessed in conjunction with the training service offered and population serviced.

a. Contractor is precluded from maintaining waiting lists that indicate TWC-VRD will sponsor the prospective customer.
b. Contractor is precluded from charging the customer directly for fees for services and is precluded from charging TWC for anything other than the contracted services.

c. Non-TWC customers may attend training; fees charged to non-TWC customers are the entity's prerogative and not TWC's responsibility.

d. Offering training in one or multiple categories is allowable.

e. Contractors may propose modifications or new training within scope at renewal, no later than 120 days prior to renewal.

f. Payment may be prorated if services are partially delivered or not completed. TWC shall not be liable for services not received, verified, and accepted per the contract and SA requirements.

ARTICLE III SOLICITATION PROCESS

3.1 AUTHORITY

TWC is soliciting the goods and/or services stated in this Solicitation under the authority of Texas Government Code §§ 2156.121-2156.127.

All official communication (including, but not limited to, Schedule of Event changes, Addenda, and Questions and Answer documents) will be posted to the Electronic State Business Daily (ESBD). TWC has no responsibility to communicate personally with each potential Respondent for this procurement. Each interested party is solely responsible for checking the ESBD for official TWC communication regarding this procurement.

3.2 SCHEDULE OF EVENTS

The dates in this Schedule of Events are tentative, and TWC reserves the right to modify these dates at any time. At the sole discretion of TWC, events listed in the Schedule of Events are subject to changes and cancellation. Scheduling changes or cancellations made prior to the Deadline for Submission of Responses will be published as an Addendum posted to the ESBD.

Table 2: Schedule of Events

Event	Date and Time
Solicitation Posted to ESBD	JUNE 12, 2026
Deadline for Submitting Questions or Requests for Clarification	Monday, June 22, 2026, at 5:00 PM Central Time
Courtesy review deadline to submit the draft VetHUB Subcontracting Plan. Email: twchubinfo@twc.texas.gov	Thursday, June 25, 2026, at 5:00 PM Central Time
Deadline for TWC HUB to provide feedback of the draft VetHUB Subcontracting Plan	Tuesday, June 30, 2026, at 5:00 PM Central Time
Deadline for Submission of Response **NOTE**: Responses must be **RECEIVED** by TWC by the deadline.	July 24, 2026, at 10:00 AM Central Time
Expected Contract Award	AUGUST 2026

Respondent must submit its Response to TWC in accordance with the due date and time as indicated in this Table 2: Schedule of Events or as changed via an Addendum posted to the ESBD.

3.3 Contract Documents

The Contract(s) resulting from this solicitation may consist of the provisions in this solicitation (including its attachments, forms, exhibits, and any Addenda); the Successful Respondent's Response, any TWC Request for Revised Response, the Successful Respondent's Response to the Request for

Revised Response, and TWC's Service Authorizations (SAs). No prior agreement or understanding, oral or otherwise, of the parties or their agents will be valid or enforceable unless embodied in these documents. In the event of a conflict between the provisions of these documents, the documents are given the following order of priority: (1) TWC SA; (2) most recent Request for Revised Response (if any); (3) Successful Respondent's Response to the Request for Revised Response or Best and Final Offer (BAFO), if any; (4) Request for Proposal; and (5) Successful Respondent's Response.

TWC may elect to have the Contract(s) resulting from this Solicitation consist of a single document. This document will contain all rights and duties of the parties extracted from the relevant terms and conditions of the Solicitation (including its attachments, forms, exhibits, and any Addenda), the Successful Respondent's Response, the Request for Revised Response or BAFO, if any, and Successful Respondent's Response to the Request for Revised Response or BAFO, if any. Prior to award, TWC will prepare the Contract for review by the Successful Respondent.

Discussions may be had concerning possible revisions to the draft Contract to clarify points, further define Contract text, or to correct minor technicalities. These discussions are to be finalized and all requests for revisions resolved within ten (10) Business Days after the Successful Respondent receives the draft Contract for review or such additional time that may be agreed to by TWC. If discussions are not finalized within such time frame, the Response may be rejected, and discussions may be initiated with the next highest scoring Respondent.

3.4 ATTACHMENTS AND FORMS

Table 3: Attachments and Forms

Attachment/Form	Title
Attachment 1	TWC VR Terms & Conditions
Attachment 2	VetHUB Subcontracting Plan Guide
Attachment 3	Progress Assessment Report (PAR)
Attachment 4	How to complete a PAR
Form 1	Execution of Response
Form 2	Cost Response
Form 3	Training Specifications Form
Form 4	References
Form 5	Financial Questionnaire
Form 6	Questions and Answers
Form 7	VetHub Subcontracting Plan (VetHSP)
1020 Form	Substitute W-9 and Direct Deposit Form

3.5 SOLE POINT OF CONTACT

All requests, questions, or other communication about this Solicitation must be made in writing to PHS, addressed to the person listed below (Sole Point of Contact) with the Solicitation number in the subject line.

Corie Remschel CTCD, CTCM

Procurement Lead

VendorProposals@TWC.texas.gov

see also, Section 3.5.2 Exceptions to the Sole Point of Contact below.

3.5.1 Prohibited Communication

Except as provided in Section 3.5 Sole Point of Contact (and Section 3.5.2 Exceptions to the Sole Point of Contact), all communication with TWC regarding this Solicitation is prohibited. Unless allowable, TWC, its

representative(s), and partners will not answer any questions or otherwise discuss the contents of this Solicitation with any potential Respondent or its representative(s). Attempts to ask questions by phone or in person will not be allowed or recognized as valid. Respondent shall rely only on written statements issued by or through TWC designated staff as provided by Section 3.5 Sole Point of Contact.

Failure to comply with these restrictions may result in disqualification of Respondent's Response. These restrictions do not preclude discussions between affected parties for the purposes of conducting business unrelated to this Solicitation.

3.5.2 Exceptions to the Sole Point of Contact

Exceptions to Section 3.5 Sole Point of Contact are as follows:

a. A Respondent with questions relating to the HSP is permitted to direct those questions to the TWC VetHUB staff via email to: TWCHUBinfo@twc.texas.gov

b. Where it is expressly directed by the Sole Point of Contact that another designated TWC representative may speak to the Respondent, such as during Contract negotiations. A Respondent is required to ensure that communications have been authorized by the Sole Point of Contact before engaging in any such communication. Failure to comply with this requirement may result in the disqualification of a Respondent's Response.

3.6 QUESTIONS/REQUESTS FOR CLARIFICATION

TWC will allow written questions and requests for clarification regarding this Solicitation. Questions must be submitted through the TWC Procurement Portal to the Sole Point of Contact listed in Section 3.5 Sole Point of Contact by the deadline established in Section 3.2 Schedule of Events using **Form 6**

Questions and Answers. Include the Solicitation section and page number to which each question applies.

TWC will post all questions and answers and, if appropriate, an Amended Solicitation to the ESBD. Responses to questions or other written requests for clarification will not be provided individually to prospective Respondents submitting questions.

TWC reserves the right to amend answers previously posted. Amended answers will be posted to the ESBD. It is the Respondent's responsibility to check the ESBD. TWC also reserves the right to provide a single consolidated response to all similar questions at the agency's sole discretion.

Questions or requests for clarification received after the deadline in Section 3.2 Schedule of Events may be reviewed by TWC but may not be answered. Only TWC's written answers posted on ESBD, in accordance with this section, are binding.

Addenda

Should an addition or correction become necessary after the Solicitation is issued, an Addendum relating the necessary information will be posted to the ESBD. Respondents are responsible for periodically checking the ESBD for addenda or additional information. **Respondents are required to acknowledge the Addenda by returning the signed Acknowledgment of Addenda with the Response. Failure to do so does not absolve a Respondent from the requirements contained within any Addenda.**

3.7 VetHUB Subcontracting Plan

Respondent must submit the VetHUB Subcontracting Plan (HSP) in accordance with Section 4.5 Submission Method. The HSP should be labeled: "VetHUB Subcontracting Plan," and include all supporting documentation in accordance with **Form 7 - VetHUB Subcontracting Plan**. The TWC VetHUB goal is 6.50 percent for all other services contracts.

The final HSP must be submitted with the Response by the deadline in Section 3.2 Schedule of Events. Responses that do not include a completed HUB Subcontracting Plan shall be rejected due to material failure to comply with Texas Government Code § 2161.252(b).

3.7.1 HSP Courtesy Review

A courtesy review of a Respondent's completed HSP by TWC is optional and is available upon request to assist Respondent in providing a compliant and responsive HSP. This courtesy review may only identify possible deficiencies, and a final compliant determination cannot be provided until the Response is submitted.

To request a courtesy review, submit the completed HSP, including all supporting documentation, in a PDF format by e-mail to the TWC VetHUB Program Office by or before the Courtesy Review of VetHUB Subcontracting Plan Deadline in Section 3.2 Schedule of Events.

> E-Mail for Courtesy Review: TWCHUBINFO@twc.texas.gov
>
> E-mail Subject Line: HSP Courtesy Review, Solicitation No. 3202600171 Short Duration Training Events for VR Customers
>
> Due Date: In accordance with the deadline in Section 3.2 Schedule of Events.

HSPs received after the courtesy review deadline in Section 3.2 Schedule of Events will not be processed. A response regarding the HSP will be provided at least ten (10) days prior to the Response deadline in Section 3.2 Schedule of Events, allowing enough time to rectify any potential deficiencies for the final HSP submission.

3.7.2 VetHUB Progress Assessment Report (PAR)

The Successful Respondent will be required to submit a monthly VetHUB Progress Assessment Report (PAR) along with itemized invoices for the

monthly reporting, no later than the 5th day of each month for the entire life of the contract. This is in accordance with Texas Administrative Code, Title 34, Part 1, Chapter 20, Subchapter D, Rule §20.284 (d)(2)(H)-(I).

Submission is required whether there is any subcontracting to report or not. The PAR is a condition of payment. Failure to submit timely may, delay or place the payment on hold.

Failure to adhere to these requirements is a breach of contract and may include debarment from all State of Texas contracting.

3.7.3 Subcontracting Opportunities

TWC finds that this contract contains subcontracting opportunities in the following service area. However, you are not restricted to these trades only.

NIGP Codes:

*204-29 Data/File Security Hardware/Software, to Include Encryption

*208-32 Customer Relationship Management Software (CRM), Microcomputer

470-54 Orientation or Navigational Aids for the Disabled

918-25 Compliance Consulting, Including American Disabilities Act (ADA)

920-91 Training, Computer Based, Software Supported

924-16 Course Development Services, Instructional and Training

924-40 Instructor-led, Classroom Training, Technical

924-41 Instructor-led, Classroom Training, Non-Technical

936–45 Hearing Devices, Aids, Auditory Training Equipment, etc.

952-90 Training and Instruction Services, Clients, Not Staff

956-85 Training Material Subscriptions

958-74 Human Resources Management Services

961-20 Customer Service Evaluation Services

961-92 Interpreter Services for American Sign Language and other forms of sign language for deaf/hard of hearing whose first language is sign language

961-93 Communication Access Realtime Translation (CART) as further explained here in the ADA Requirements for Effective Communication and Closed Captioning for Broadcast Television/Webcasts

990-48 Identity Theft Protection and Data Security Services

CMBL Instructions:

Locate a list of VetHUB subcontractors on the Centralized Masters Bidders List (CMBL) at: https://comptroller.texas.gov/purchasing/vendor/cmbl/

a. Select: VetHUBs Only,
b. Multiple Vendor Search,
c. Enter: NIGP Class / Item Code
d. Highway District #, click on Search.

ARTICLE IV RESPONSE SUBMISSION INSTRUCTIONS

4.1 DEADLINE

Responses must be received by PS as prescribed no later than the date and time specified in Section 3.2 Schedule of Events.

Responses received after the deadline specified in Section 3.2 Schedule of Events will be rejected and will not be evaluated or considered for Contract award. TWC is not responsible for Responses submitted late, illegible, incomplete, or otherwise considered disqualified due to failure of electronic equipment or operator error.

4.2 General Information

Respondent must fully and completely address all requirements described in this Solicitation. Incomplete or partial Responses will not be considered. The Respondent must provide all information that the Respondent believes would be helpful to TWC in evaluating the Respondent's ability to fulfill the Solicitation requirements. Respondent shall prepare a Response that clearly and concisely represents its qualifications and capabilities.

4.3 Response Format

The Response to this Solicitation must:

a. Be responsive to all Solicitation requirements;

b. Be in the 8 1/2" by 11" paper layout;

c. Be clearly legible; and

d. Be presented using font type Verdana or Arial, font size 12-point, with one (1) inch margins and 1.25 line spacing; the sole 12-point font size exception is no less than size 10 point for tables, graphs, and appendices.

4.4 Discrepancies

In the event of any discrepancies or variations between copies, TWC is under no obligation to resolve the inconsistencies and may make its scoring and selection decision, accordingly, including the decision to potentially disqualify a Response. If Respondent fails to designate an "Original" Response as required by Section 4.5 Submission Method, TWC in its sole discretion, will determine the version to be used as the original or may disqualify the Response. If the Respondent submits a redacted Response as the "Original," TWC will disqualify the Response, and it will not be evaluated.

TWC will not accept submissions after the Response due date in Section 3.2 Schedule of Events to remedy discrepancies or variations in Response submissions.

4.5 Submission Method

TWC has implemented the eProcurement platform referred to as the TWC Procurement Portal. Respondent must upload all documentation indicated to the TWC PROCUREMENT PORTAL link on the "Open Opportunities" tab.

Submissions by any other method will not be accepted.

To respond to this Solicitation, Respondents must register through the TWC Procurement Portal website. There is no charge to register.

Step-by-step instructions are available at: Vendor Registration – Procurement.

For a quick tutorial through the registration and submission process, visit: Submissions – Procurement.

Any issues with uploading must first be addressed with the TWC Procurement Portal Technical Support at the contact information included in the Procurement Information Summary and TWC Procurement Portal Instructions to Respondents document.

Respondents must contact the Sole Point of Contact prior to the deadline if there are issues with using the TWC Procurement Portal and an alternative submission method may be required. Failure to contact the Sole Point of Contact well before the deadline to make alternative arrangements will disqualify any subsequent Response submission.

In no event will TWC be responsible or liable for any delay or error in delivery. TWC is not responsible for electronic submissions that are captured, blocked, filtered, quarantined or otherwise prevented from

reaching the proper destination server by any TWC anti-virus or other security software.

It is the Respondent's responsibility to appropriately mark and upload the Proposal to the TWC Procurement Portal by the specified date. Each Respondent is solely responsible for ensuring its Proposal is submitted in accordance with all Solicitation requirements and ensuring timely receipt by TWC.TWC is not responsible for electronic submissions that are captured, blocked, filtered, quarantined or otherwise prevented from reaching the proper destination server by any TWC anti-virus or other security software. To confirm receipt of all electronic submissions, Respondent should request a confirmation by e-mail.

Hard copies received will not be accepted or reviewed.

It is the Respondent's responsibility to appropriately mark and deliver the Response to the TWC Procurement Portal by the specified date. Each Respondent is solely responsible for ensuring its Response is submitted in accordance with all Solicitation requirements and ensuring timely receipt by TWC. **In no event will TWC be responsible or liable for any delay or error in delivery. Response must be RECEIVED by TWC by the Response Deadline identified in Section 3.2 Schedule of Events.**

4.6 REQUIREMENTS SUBMISSION

Table 4: Required Forms and Submission Documents

Document Name
Narrative Proposal (Section 4.6.3.2)
Form 1 Execution of Response (Section 4.6.2)
Form 2 Cost Response (Section 4.8)
Form 3 Training Specifications Form (Section 4.9)
Form 4 References (Section 4.7)

Document Name
Form 5 Financial Questionnaire (Section 4.11)
Form 7 VetHUB Subcontracting Plan (HSP) (Section 3.8)

4.6.1 Executive Summary

Respondent must provide an Executive Summary of their Response (excluding cost information) that asserts the Respondent is providing, in its Response, all the requirements of this Solicitation, including Section Article II Scope of work. The Executive Summary must demonstrate Respondent's understanding of TWC goals and objectives for this Solicitation.

If the Respondent is providing goods and/or services beyond those specifically requested, those goods and/or services must be identified. If the Respondent is offering goods and/or services that do not meet the specific requirements of this Solicitation, but in the opinion of the Respondent are equivalent or superior to those specifically requested, any such differences must be noted in the Executive Summary. The Respondent should realize, however, that failure to provide the goods and/or services specifically requested may result in disqualification.

The Executive Summary must not exceed two (2) pages and should represent a full and concise summary of the contents of the Response.

4.6.2 Execution of Response

Respondent must complete, sign, and return **Form 1- Execution of Response**. By signing, Respondent agrees to provide the goods and/or services described in this Solicitation and agrees to abide by all TWC Terms and Conditions as specified in this Solicitation and in resulting Contract. A Response without the required signatures is not responsive to the Solicitation and will be disqualified.

Unsigned Responses will not be evaluated; these Responses will be kept with the procurement file and not be returned to the Respondent.

4.6.3 Respondent Organization Information

Respondent must include the following information with their Response.

4.6.3.1 Respondent Point of Contact

Respondent must provide the name, address, and telephone number of Respondent's point of contact for any questions regarding the Response and, if different than the point of contact for questions about the Response, the name, address, and telephone number of Respondent's point of contact for any resulting Contract.

4.6.3.2 Respondent Organization Narrative

Respondent must provide a detailed narrative explaining why it is qualified to provide the services enumerated in Article II Scope of Work, focusing on key strengths and competitive advantages.

Respondent must describe its knowledge and experience in providing training event services to comparable clients of similar size and complexity to TWC. The Organization Narrative must not exceed four (4) pages.

4.6.3.3 Organization Profile

NOTE: Texas governmental entities are exempt from this requirement.

Respondent must provide an organizational profile, including:

a. Ownership structure (e.g., corporation, partnership, LLC, or sole proprietorship), including any wholly owned subsidiaries, affiliated companies, or joint ventures. (Please provide this information both in a narrative and as a graphical representation.)

    1. If Respondent is an affiliate of or has a joint venture or strategic alliance with another company, Respondent must

identify the percentage of ownership of each joint venture member or affiliate and the percentage of the parent company's ownership. The entity performing the majority of the work under any resulting Contract, throughout the duration of the Contract, must be the primary Respondent.

2. Finally, Respondent must provide its proposed operating structure for the services requested under this Solicitation and which entities (i.e., parent company, affiliate, joint venture, subcontractor) will be performing the services.

b. The year the company was founded and/or incorporated. If incorporated, please indicate the state where the company is incorporated and the date of incorporation;

c. The location of company headquarters and any field office(s) that may provide services for any resulting Contract;

d. The number of employees in the company, both locally and nationally, and the location(s) from which employees will be assigned to TWC's project; and

e. An indication of whether the company has ever been in contract with any Texas state agency. If "Yes," specify the agency name, contract term, and the scope of work for that contract.

4.6.4 Project Work Plan

Respondent must describe the proposed processes and methodologies for providing all components described in Article II Scope of Work, including its approach to meeting the project schedule. Respondent should identify all tasks to be performed, including all project activities, materials and other products, services, and reports to be generated during the Contract period and relate them to the stated purpose(s) and specifications described in this Solicitation.

4.6.5 Key Personnel

Respondent must discuss and provide information for the individual(s) who will be responsible for overseeing the day-to-day performance and services. Provide staffing profiles and resumes for all key personnel who will be assigned to the Contract that demonstrates their ability to perform the services specified in the Solicitation.

4.7 REFERENCES

Respondent must provide a minimum of three (3) references in the format set forth in **Form 4 - References** and should also provide any canceled contract reference as applicable. These references must relate to similar contracts or projects performed as described in Section 2.2 Specifications within the last five (5) years, and it is preferable they be from state, federal, and/or local governmental entities.

4.7.1 Similar Contracts

Each Respondent shall provide descriptions for a minimum of three (3) engagements of comparable complexity and sensitivity to the requirements of this Solicitation that have been conducted within the past five (5) years. The description of comparable engagements shall be detailed and cover the contracts the Respondent and any Subcontractors have had and all experience similar to this Contract that qualifies the Respondent to meet the requirements of this Contract, including, but not limited to:

a. Size of contract (including value);

b. Reason for contract termination/expiration, if contract is no longer in effect;

c. Types of services directly provided by the Respondent and whether the Respondent was the contractor or Subcontractor;

d. Term and type of contract, including effective dates; and

e. Any problems encountered.

4.7.2 Contract Performance

The Respondent shall state whether or not any of the following have occurred during the last five (5) years:

a. The Respondent has had a contract terminated, and, if so, shall provide full details, including the other party's name, address, and telephone number on **Form 4 - References**.

b. The Respondent has been assessed any remedies, including liquidated damages or other such monetary remedies, under any existing or past contracts, and, if so, note the reason for and the amount assessed or paid for each incident.

c. The Respondent was the subject of (i) any threatened, pending, or resolved disciplinary action for substandard work and/or unethical practices; or (ii) any order, judgment or decree of any federal or state authority barring, suspending or otherwise limiting the right of the Respondent to engage in any business, practice, or activity.

d. The Respondent has been involved in any civil or criminal litigation and/or entered into any compromise agreement, settlement agreement, or resulting consent decree or judgements, if applicable, related to contract performance, the goods and/or services sought by this Solicitation, or that a reasonable person knowledgeable of the applicable industry would consider relevant to the work under the Contract. Respondents are not required to violate any confidentiality provision but must provide information not prohibited from disclosure.

4.8 Cost Response

In accordance with Section 4.9 Cost Response, the Respondent shall submit a separate Cost Proposal for *each* training course for which they are

proposing services. Each Cost Proposal must be submitted as a file named "Cost Proposal" and contain the Respondent's cost information in the format included in **Form 2 - Cost Response**. **(If you are submitting costs services for more than one training course, submit one Cost Response Form per training.)**

Cost information must be included as a separate document and presented only in the format set forth in **Form 2 - Cost Response**.

Respondent must state pricing for all goods and/or services rendered during the course of any awarded Contract, including any and all costs involved that are to be paid or reimbursed by TWC during the initial contract period and any renewal or extension periods. No reimbursement is available to the Successful Respondent beyond the amount agreed to be paid for the goods and/or services provided. Pricing agreed to in any resulting Contract shall be firm and remain constant through the life of the Contract (unless a Price Adjustment is permitted in accordance with Section 6.3).

The Cost Proposal provided is for the goods and/or services as specified in this Solicitation and shall include any and all materials and training services necessary to provide the goods and/or services according to the minimum specifications, requirements, provisions, and Terms and Conditions set forth in this Solicitation.

4.9 TRAINING SPECIFICATIONS

In accordance with Section 4.9 Training Specifications, the Respondent shall submit a separate Training Specifications form for *each* training course for which they are proposing services. Each Training Specification form must be submitted as a file named "Training Specifications Form" and contain the Respondent's training information in the format included in **Form 3 – Training Specifications**. **(If you are proposing services for more than**

one training course, submit one Training Specifications Form per training course.)

4.10 Offered Options

TWC does not intend to limit the creativity of Respondents from bringing forward new suggestions or enhancements not described in this Solicitation. Respondents are encouraged to describe any Offered Options. Offered Options are not required and are not considered during evaluation of Responses. TWC will not award additional options if not included in the Response.

4.11 Financial Questionnaire

The Respondent must complete **Form 5 - Financial Questionnaire** unless it is a governmental entity. Failure to include any of the items listed for the appropriate company type may result in disqualification of the Respondent's Response. If TWC learns of a failure to disclose after a Contract has been awarded to the Successful Respondent, the Contract may be terminated. In the event of such termination, the Successful Respondent shall be liable for all costs associated with the re-procurement, including any increased costs for the services originally awarded.

The Respondent must include the following items in its Response unless it is a governmental entity. Failure to include any of the items listed for the appropriate company type may result in disqualification of the Respondent's Response. If TWC learns of a failure to disclose after a Contract has been awarded to the Successful Respondent, the Contract may be terminated. In the event of such termination, the Successful Respondent shall be liable for all costs associated with the re-procurement, including any increased costs for the services originally awarded.

4.12 Corporate Guarantee

TWC reserves the right to request that such entity unconditionally guarantee performance by the Respondent in each and every obligation, warranty, term, covenant, and condition of any Contract resulting from this Solicitation.

4.13 Exceptions

Each Respondent is highly encouraged, in lieu of including exceptions in a Response, to address all issues that might be advanced by way of exception by submitting such issues as questions or requests for clarification pursuant to Section 3.6 Questions/Requests for Clarification.

Any exception included in a Response may result in a Respondent not being awarded a Contract. If a Respondent includes exceptions in its Response, Respondent is required to use **Form 1 - Execution of Response** and provide all information requested on the form. Any exception that does not provide all required information in the format set forth in **Form 1 - Execution of Response** may be rejected without consideration.

Respondent must clearly identify the specific section and language to which it takes exception, propose specific alternative language, and describe its reasoning for requesting the exception. TWC will only consider exceptions submitted on **Form 1 - Execution of Response**.

No exception, nor any other term, condition, or provision in a Response that differs from or contradicts this Solicitation will be considered to be part of any resulting Contract unless expressly made a part of the Contract in writing by TWC.

Any exceptions or deviations by the Respondent to **Attachment 1 – TWC VR Terms & Conditions** may make the Response unacceptable for award without discussion. If a Respondent proposes exceptions to **Attachment 1 – TWC VR Terms & Conditions**, TWC may make an award without discussion

to the next highest scoring Respondent with no exceptions to **Attachment 1 – TWC VR Terms & Conditions**.

4.14 Binding Offer

A Response should be responsive to the Solicitation as worded and without any assumption that any or all terms, conditions, or provisions of the Solicitation will be negotiated. Furthermore, all Responses constitute binding offers. Any Response that includes any type of disclaimer or other statement indicating that the Response, or any portion of the Response, does not constitute a binding offer may be disqualified, as determined by TWC in its sole discretion.

If a Respondent's ability to enter into a Contract is contingent upon any exception or assumption provided in accordance with Section 4.13, the Respondent may be disqualified from further consideration for Contract award.

4.15 Franchise Tax – Right to Transact Business in Texas

If applicable, the Texas franchise tax is imposed on each taxable entity formed or organized in Texas or doing business in Texas.

Respondent must be set up in the Texas franchise tax system prior to Contract award if applicable. Texas franchise tax information can be accessed at https://comptroller.texas.gov/taxes/franchise/.

4.16 Ambiguity, Conflict, or Discrepancy

Respondent must notify the 3.5 Sole Point of Contact of any ambiguity, conflict, discrepancy, exclusionary specification, omission, or error in the Solicitation in the manner and by the deadline described in Section 3.6 Questions/Requests for Clarification.

If Respondent fails to properly and timely notify the Sole Point of Contact (Section 3.5) of any ambiguity, conflict, discrepancy, exclusionary

specification, omission, need for clarification, or other error in the Solicitation, Respondent:

a. Waives any claim of error or ambiguity in the Solicitation and any resulting Contract;

b. Submits a Response at its own risk;

c. May not contest the interpretation by TWC of such provision(s); and

d. Is not entitled to additional compensation, relief, or time by reason of ambiguity, conflict, discrepancy, exclusionary specification, omission, or other error or TWC's later correction.

4.17 Response Irrevocability

Responses submitted to the Solicitation are irrevocable for one hundred eighty (180) calendar days following the solicitation closing date. This period may be extended at TWC's Procurement and Contract Services Director's request only by a Respondent's written agreement. Upon Contract execution, prices agreed upon by the Successful Respondent(s) are an irrevocable offer for the term of the Contract and any Contract renewals or extension(s). No other costs, rates, or fees shall be payable to the Successful Respondent unless expressly agreed upon in writing by TWC.

4.18 Questions or Requests for Clarification

By submitting a Response, Respondent grants TWC the right to ask questions and request clarification. As part of the initial evaluation, the evaluation committee may request clarification. Clarifying questions to a Respondent are to resolve conflicting information, apparent ambiguities, or minor clerical errors within the Response.

4.19 Cost of Submission and Additional Evaluation Activities

TWC will not reimburse Respondents for any costs related to Response preparation or submission. Additionally, Respondents will be responsible for

their own presentation equipment if invited to participate in additional evaluation activities, such as in-person discussions, clarifications, or negotiations. Failure to participate in the requested additional evaluation activities may eliminate a Respondent from further consideration.

TWC is not responsible for any costs incurred by the Respondent in preparation for any additional evaluation activities. All costs incurred by Respondent are the responsibility of Respondent.

4.20 TWC Rights

All submitted Responses become the property of TWC. TWC reserves the right to use any and all ideas presented in any Response to this Solicitation. Selection or rejection of any Response does not affect this right.

The rights of TWC include, but are not limited to:

a. Cancellation of this Solicitation at TWC's sole discretion;

b. Suspension of the procurement process and issuance of Solicitation Addenda;

c. Rejection, in whole or in part, of any and all Responses received for this Solicitation;

d. Waiver of administrative deficiencies or minor technicalities in any of the Responses;

e. Utilization of any and all ideas presented in the Responses;

f. Directing any Respondent to submit Response modifications addressing subsequent Addenda;

g. Elimination of any requirements that are not met by all Respondents upon notice to all parties submitting a Response;

h. Making typographical corrections to Responses, with the concurrence of the Respondent;

i. Changing computational errors with the concurrence of the Respondent;

j. Requesting Respondents to clarify the Responses;

k. Requesting Respondents to submit additional information pertaining to the Response; and

l. Making an award without:

    1. Requesting clarification;

    2. Allowing modification;

    3. Discussing;

    4. Negotiating; and/or

    5. Requesting a revised response.

ARTICLE V EVALUATION AND AWARD

TWC will award a Contract to the Respondent(s) that offers the best value to the State and is in the State's best interest as determined using the evaluation criteria described in this Article V.

Responses that meet the minimum qualifications will be submitted to the evaluation committee for review and scoring. Each member of the evaluation committee will receive a copy of each responsive Response. The evaluators will review the Responses considering the criteria listed in Section 5.5 Evaluation Criteria.

Evaluators will individually score the Responses. Oral Presentations or Site Visits may also be used to make a selection for Contract award, as outlined in this section.

5.1 Conformance With State Law

Responses shall be evaluated in accordance with Texas Government Code § 2155.074(B). TWC shall not be obligated to select the lowest priced Response but shall make an award to the Respondent that provides the best value to the State of Texas.

5.2 Minimum Qualifications (Pass/Fail)

A Respondent must meet the minimum qualifications listed below. Respondents that do not meet the minimum qualifications listed below will be disqualified from consideration.

a. Respondents must meet the requirements listed in 4.5 Submission Method

b. Respondent must have recently been in business for a minimum of 5 years, or the principals/owners must have had ownership/executive management experience within the last five (5) years in a previous company that provided short-duration training to VR customers;

c. Respondent has submitted **Form 5 – Financial Questionnaire** in accordance with **Section 4.11 Financial Questionnaire**.

d. Respondent has submitted the Proposal in accordance with **Section 4.5**, **(Submission Method).**

e. Respondent who receives an overall score on the VPTS of ”D” or below shall be disqualified from consideration for award.

5.3 Initial Compliance Screening

TWC will review Responses for initial compliance with the Submission requirements listed in 4.5 Submission Method and for demonstrated ability to meet Section 5.2 Minimum Qualifications (Pass/Fail) required to advance

to evaluations. Failure to meet the minimum qualifications will result in the disqualification of the Response.

TWC will automatically disqualify any Response that does not include one or more of the completed and signed (as applicable) documents.

All Responses will be screened for inclusion of all required information prior to release to the evaluation team. TWC may exclude from further consideration for selection any non-responsive Response or portion of a Response.

5.4 Response Evaluation

Each member of the evaluation committee will read the Responses in preparation for evaluation. The evaluation committee will score all Responses that pass initial screening in Section 5.2, even if there is only one viable Response. Responses will be scored against the criteria in Section 5.5 Evaluation Criteria.

Responses will be evaluated utilizing aggregated individual scoring outlined in this Article V Evaluation and Award. The individual evaluators' scores will be aggregated and weighted, resulting in the final Response Score, unless TWC requests a Revised Response from those Respondents in the Competitive Range.

5.5 Evaluation Criteria

TWC shall consistently evaluate and score Responses in accordance with the following criteria.

a. Cost /Price or Reasonableness of Price (40%)

b. Respondent's Ability to Provide Training Events (40%)

- Section 4.9 Training Specifications **Form 3 – Training Specifications Form**

c. Past Performance, Qualifications, and Experience (20%)

- Section 4.6.3 Respondent Organization Information;
- Section 4.8 References, including Section 4.7.11 Similar Contracts, Section 4.7.2 Contract Performance, and **Form 4 - References (including Cancelled Contract References)**;

5.6 Competitive Range

The Competitive Range will consist of the Responses that receive the highest scores, or most satisfactory ratings based on the published evaluation criteria and procedures governing this procurement. Cutoff for the Competitive Range will be based on the "natural break" in scores and on reasoned judgment that Responses below the cutoff cannot be made successful through clarification and negotiation. TWC is not obligated to enforce a natural break in scores and reserves the right to advance as many or as few Responses as qualified under these criteria to achieve the best value for the state of Texas.

5.7 Discussions and Revised Responses

After the written Response evaluation, Respondent may be selected for invitation to additional evaluation activities that may include one or more of the following: oral presentations, clarifications, discussions, Proof of Concept, demonstrations, and site visits. Advancement will be determined by the Competitive Range.

A Respondent that does not meet the advancement criteria in this Section will not be invited to participate in additional evaluation activities. The Final Written Response Score will be considered the Total Score, and the Respondent may not be considered further for Contract award.

To further identify the Respondent providing the best value, Respondents selected for additional evaluation activities will be the final group of

Respondents eligible for award. Additional evaluation activities will allow for revised points for the Respondent's Final Written Response Score to replace the original technical score. This will be the Final Written Response Score with any adjusted points received, if applicable.

TWC may require additional evaluation activities from any or all Respondents to make a determination for award recommendation. Information from the additional evaluation activities will be used in addition to the scoring of the criteria in Section 5.5 Evaluation Criteria. TWC will provide Respondents with advance notice of any such Additional Evaluation Activities. Advance notice will include an agenda and specific scenarios or use cases for each category or criteria listed in this Section.

5.8 Best and Final Offer (BAFO)

A Respondent should provide its best offer in its original Response. Respondents should not expect or assume that TWC will request a Revised Response or a BAFO at any time. TWC reserves the right to request more than one Revised Response from each of the Respondents in the Competitive Range; however, multiple, successive Responses are not envisioned should TWC issue a Request for BAFO as that is intended to be a "best and final offer." A Request for Revised Response or BAFO does not guarantee the Respondent an award or that further negotiations will be conducted.

If a Response is submitted to a Request for a Revised Response or BAFO, the Final Written Response Scores or Total Score (as outlined by Section 5.9 Final Response Score and Total Score) will be revised in accordance with the stated criteria in Section 5.5 Evaluation Criteria as to any changes made to the Respondent's original Response.

The Request for Revised Response or BAFO will allow a Respondent the opportunity to revise its original Response, including pricing. Revisions must be submitted in the manner and form prescribed by the Request. Requests

will be sent to the point of contact provided by the Respondent. TWC is not responsible for a Respondent's failure to timely receive or respond to a Request.

If a Request for Revised Response or BAFO is issued by TWC, it will be evaluated by the Evaluation Committee based on the criteria listed in Section 5.5 Evaluation Criteria, rescored, and ranked. The award will then be granted to the Respondent that represents the best value to the State.

5.9 Final Response Score and Total Score

A Respondent's Final Response Score is based on the cumulative score of all criteria in Section 5.5 Evaluation Criteria. If a Request for Revised Response or BAFO is requested, the Final Response Score will be based on the Request for Revised Response or BAFO score, and any previous scores will be archived in the procurement record.

The Final Response Score may not always determine best value or selection for negotiation and award. See Section 5.10 Summary of Best Value Determination for more information.

5.10 Summary of Best Value Determination

The final selection for award will be based on best value, as determined by this section. This includes, but is not limited to, any scoring adjustments for outliers, Requests for Revised Offers or BAFOs, Oral Presentations, Site Visits, or other additional considerations as specified by this Solicitation. A Respondent is encouraged to thoroughly review the processes outlined in this Article V, as it documents the best value considerations to be made by TWC in selecting a Respondent for negotiation and Contract award.

If, for any reason, a Contract cannot be executed with a Respondent selected for award within a reasonable timeframe of TWC's determination to seek to contract with that Respondent, TWC may negotiate a Contract with

the next highest-scored Respondent or may cancel, withdraw, modify, or partially award this Solicitation.

5.11 Public Information Act

Information, documentation, and other materials submitted in connection with this Solicitation or resulting Contract may be subject to public disclosure pursuant to the Texas Public Information Act, Texas Government Code, Chapter 552. See **Attachment 1 – VR TWC Terms & Conditions**, Section 2.2.

TWC may, in its sole discretion (1) disqualify all Respondents that fail to fully comply with the requirements set forth in this section, or (2) offer all Respondents that fail to fully comply with the requirements set forth in this section additional time to comply. Submitting partial or incomplete information that suggests inclusion of confidential information constitutes failure to comply with the requirements set forth in this section.

5.11.1 Responses

If Respondent asserts that information provided in its Response is exempt from disclosure under the Texas Public Information Act, Respondent must mark and submit two separate, searchable Portable Document Format (PDF) copies (Original Response and "Public Information Act Copy," including attachments, of the Original Response) as identified below. **This copy is in addition to the original and all copies otherwise required under the provisions of this Solicitation).**

a. Mark Original Proposal:

1. Mark the top of the front page with the words "CONTAINS CONFIDENTIAL INFORMATION" in large, bold, capitalized letters (the size of, or equivalent to, 12-point Verdana font or larger);

2. Mark the bottom of each page that contains information that Respondent claims is exempt from public disclosure with the words "CONTAINS CONFIDENTIAL INFORMATION";

3. Identify, adjacent to each portion of the Response that Respondent claims is exempt from public disclosure, the claimed exemption from disclosure. Vague and general claims to confidentiality will not be acceptable.

NOTE*:* No redactions are to be made in the Original Response.

b. **Mark Public Information Act Copy of Response:**

1. Mark the copy at the top of the front page with "Public Information Act Copy" in large, bold, capitalized letters (the size of, or equivalent to, 12-point Verdana font or larger);

2. Each portion Respondent claims is exempt from public disclosure must be redacted (blacked out); and

3. Identify, adjacent to each redaction, the claimed exemption from disclosure. Each identification provided as required by this subsection (b) must be identical to the redactions identified in subsection (a)(3), above. The only difference in required markings and information between the Original Response and the "Public Information Act Copy" of the Response will be redactions, which can only be made in the "Public Information Act Copy." There must be no redactions in the Original Response.

Respondent should not submit a Public Information Act Copy indicating that the entire Response is exempt from disclosure. Merely making a blanket claim that the entire Response is protected from disclosure because it contains any amount of confidential, proprietary, trade secret, or privileged information is not acceptable, and this blanket claim will not be considered by TWC.

A Response should not be marked or asserted as copyrighted material. If Respondent asserts a copyright to any portion of its Response, Respondent agrees to reproduction and posting on public websites by the State of Texas, including all other state agencies, without cost or liability and, additionally, agrees to allow the State of Texas to provide a copy of the Response to individuals making a Public Information Act request for the response.

5.11.2 Contract

Within five (5) days from Contract execution, the Successful Respondent must submit a "Public Information Act Copy" of the Original Executed Contract (in addition to the original executed contract) to the TWC contract manager by email. The Public Information Act Copy must meet the following requirements:

a. The copy must be clearly marked as "Public Information Act Copy" on the front page in large, bold, capitalized letters (the size of, or equivalent to, 12-point Verdana font or larger);

b. Each portion Successful Respondent claims is exempt from public disclosure must be redacted (blacked out); and

c. Successful Respondent must identify, adjacent to each redaction, the claimed exemption from disclosure. Each identification provided as required in Subsection (b) of this section must be identical to those set forth in the Original Response as required in Section 3.6. The only difference in required markings and information between the Original Contract and the "Public Information Act Copy" of the contract will be redactions, which can only be included in the "Public Information Act Copy." There must be no redactions in the Original Contract.

ARTICLE VI GENERAL TERMS AND CONDITIONS

The Terms and Conditions identified in the Solicitation **Attachment 1 – TWC VR Terms & Conditions** are applicable to this Solicitation and any Contract resulting from this Solicitation. TWC reserves the right to incorporate additional provisions in the Contract in the best interest of TWC.

In the event of a conflict between this Solicitation and applicable laws and regulations, precedence shall be given to the laws and regulations.

6.1 CONTRACT AWARD

TWC intends to award one or more Contracts as a result of this Solicitation. A written notice of Contract Award will be posted on the ESBD, the TWC Procurement portal and notification sent to all Respondents immediately following execution of the Contract.

6.2 CONTRACT TERM

The Contract Term will commence on the fully executed Contract date and expire one year from contract execution date. At the end of the initial Term, TWC will have the sole option to renew the term of the Contract for four (4) additional one-year terms.

The Contract is contingent upon the continued availability of funding. If funds become unavailable through lack of appropriations, legislative budget cuts, amendment of the General Appropriations Act, TWC consolidation of offices, or any other disruption of current appropriations, Termination provisions of **Attachment 1- TWC VR Terms & Conditions** shall apply.

Following the base term and any allowable renewals or extensions, TWC may extend any resulting Contract for not more than one additional option period to address immediate operational or service delivery needs. If the resulting

Contract does not include a defined option period, the extension is limited to one year.

6.3 Price Adjustment

Renewal of the Contract shall be for the original Response price; however, if an optional renewal term is exercised, TWC may permit a price adjustment upward or downward after the end of the initial contract term and each exercised renewal term when correlated with the Consumer Price Index (Labor and Services) for Urban Wage Earners and Clerical Workers (CPI-W), U.S. City Average or Producer Price Index-PPI (Commodities) published by the Bureau Labor Statistics (BLS), Washington D.C. The initial Contract term rate may be adjusted by the latest announced change in the CPI-W for the prior 12-month period, limited to a maximum of 4% increase per Contract term or any amount of decrease. The Successful Respondent must request any price adjustments in writing at least ninety (90) days prior to the expiration of the current contract term. At a minimum, the Successful Respondent must include supporting documentation from the CPI or PPI for the cost increase.]

6.4 Contract Amendments

The Contract may be amended only by written agreement signed by both the Successful Respondent and TWC, except in the case of changes in state of federal law.

6.5 No Guarantee of Volumes, Usage, or Compensation

TWC makes no guarantee of volume, usage, or total compensation to be paid to a Respondent under an awarded Contract, if any, resulting from this Solicitation.

6.6 Governmental Entities

If Respondent is responding to this Solicitation in its capacity as a governmental entity, certain Terms and Conditions found in this Solicitation, including exhibits and attachments, may not be applicable. Furthermore, to the extent permitted by law, if a Response is received from a governmental entity, TWC reserves the right to enter into an interagency or interlocal agreement with the governmental entity.

6.7 Respondent Waiver – Intellectual Property

SUBMISSION OF ANY DOCUMENT TO TWC IN RESPONSE TO THIS SOLICITATION CONSTITUTES AN IRREVOCABLE WAIVER AND AGREEMENT BY RESPONDENT TO FULLY INDEMNIFY THE STATE OF TEXAS AND TWC FROM ANY CLAIM OF INFRINGEMENT AGAINST THE STATE OF TEXAS AND TWC REGARDING THE INTELLECTUAL PROPERTY RIGHTS OF RESPONDENT OR ANY THIRD PARTY FOR ANY MATERIALS SUBMITTED TO TWC BY RESPONDENT.

6.8 Insurance

For the duration of any Contract resulting from this Solicitation, the Successful Respondent shall acquire insurance, bonds, or both, with financially sound and reputable independent insurers, in the type and amount listed in **Attachment 1 - TWC VR Terms & Conditions.**

Notwithstanding the preceding, TWC reserves the right to consider reasonable alternative methods of ensuring the Contract in lieu of the insurance policies customarily required. It will be the Respondent's responsibility to recommend to TWC alternative methods of insuring the Contract. Any alternatives proposed by Respondent should be accompanied by a detailed explanation regarding Respondent's inability to obtain the required insurance and/or bonds. TWC shall be the sole and final judge as to the adequacy of any substitute form of insurance coverage.

Failure to maintain insurance coverage or acceptable alternative methods of insurance shall be deemed a breach of Contract.

6.9 REMEDIES

6.9.1 Assessment of Remedies

Once TWC has determined that Remedies are to be assessed, the Executive Director or Executive Director's designee shall notify the Successful Respondent of the assessment(s). TWC will withhold Remedies from payments to the Successful Respondent, or, if no payments are to be made, TWC will make demand of payment of Remedies. The Successful Respondent must make payment within thirty (30) days of the TWC's demand. **In the event the Successful Respondent fails to pay within the thirty (30) day period, TWC may make a claim for payment against the performance bond, with or without notice to the Successful Respondent, if applicable.**

6.9.2 Failure to Assess Remedies

The failure of TWC to assess Remedies in any instance where TWC is entitled to Remedies under the terms of this Solicitation, or the resulting Contract shall not constitute waiver in any fashion of TWC's rights to assess Remedies.

6.9.3 Failure to Notify TWC of a Change of Ownership or Control or Change in Financial Condition

The failure of the Successful Respondent to notify TWC of a change of ownership or control or change in financial condition as required in Sections 6.11 Changes in Ownership may result in the Successful Respondent being assessed sanctions in the amount of one hundred dollars ($100) per incident.

6.9.4 Failure to Comply with Disclosure Requirement

The failure of the Successful Respondent to comply with the disclosure requirement in **Attachment 1 – TWC VR Terms & Conditions, Section 2.2** may result in the Successful Respondent being assessed Sanctions in the amount of one hundred dollars ($100) per incident.

6.9.5 Failure to Produce Records or Information

6.9.5.1 As Part of Background Investigation

The failure of the Successful Respondent to cooperate with and/or produce records or information as part of a background investigation conducted pursuant to **Attachment 1 – TWC VR Terms & Conditions**, Section 2.40 may result in the Successful Respondent being assessed Remedies in the amount of five hundred dollars ($500) per day for each day the records/information are not produced, or answers are not provided.

6.9.5.2 As Part of an Audit

The failure of the Successful Respondent to cooperate with and/or produce records or information as part of an audit conducted pursuant to **Attachment 1 – TWC VR Terms & Conditions, Sections 2.12-2.14** or requested pursuant to **Attachment 1 – TWC VR Terms & Conditions, Section 2.34** may result in the Successful Respondent being assessed Remedies in the amount of five hundred dollars ($500) per day for each day the records/information are not produced, or answers are not provided.

6.10 LIQUIDATED DAMAGES

6.10.1 General

It is agreed by TWC and the Successful Respondent that:

a. If the Successful Respondent does not provide or perform the requirements referred to or listed in this Solicitation or fulfill the obligations of the Contract, damage to TWC will result;

b. establishing the precise measure of damages in the event of default by the Successful Respondent may be (i) costly, (ii) time consuming, or (iii) difficult or impossible to calculate;

c. the liquidated damage assessments contained herein represent a good faith effort to quantify the damages that could reasonably be anticipated at the time of execution of the Contract;

d. the damages set forth herein are just and reasonable;

e. nothing contained in this section shall be construed as relieving the Successful Respondent from performing all Contract requirements whether or not said requirements are set forth herein; and

f. TWC may, therefore, in its sole discretion, deduct damages from the compensation otherwise due to the Successful Respondent. All assessments of damages shall be within the sole discretion of TWC.

g. The Successful Respondent shall perform all services in accordance with the RFP requirements, provisions, terms, and conditions. This remedy is for failure to perform services according to a requirement, provision, term, or condition not covered by another remedy. Subject to the nature and extent of the non-compliance, TWC may assess a ten percent (10%) remedy on each monthly invoice for all services until compliance is achieved.

    1) Before this remedy can be applied, TWC must issue a written demand and provide the Successful Respondent a period of thirty (30) calendar days to achieve compliance in most circumstances. TWC, at its sole discretion, may reduce the time period depending on the criticality of the non-compliance.

    2) TWC may apply one (1) or more of the remedies in response to non-compliance by the Successful Respondent.

3) In addition to the non-performance remedies above, TWC may elect to exercise its options to include any available remedy at law or in equity, up to and including termination of the Contract.

6.10.2 Liquidated Damages Assessment

Once TWC has determined that liquidated damages are to be assessed, TWC shall notify the Successful Respondent of the assessment(s). Upon receipt of written notice, the Successful Respondent will have ten (10) days to provide a written explanation of any justification that may be applicable to the liquidated damages being considered and a corrective action plan for bringing the operations within the standards specified. TWC has the right to amend the corrective action plan submitted by the Successful Respondent. In all cases, the corrective action plan must be approved by TWC in writing prior to implementation. The corrective action plan must be implemented by the Successful Respondent at no cost to and upon approval by the TWC Contract Manager. Liquidated damages will not be assessed during the specified cure period for the activity in question. If the breach is not cured or the Successful Respondent does not provide a written justification and/or approved corrective action plan, TWC will withhold liquidated damages from payments to the Successful Respondent, or, if no payments have been made, TWC will make demand of payment of liquidated damages. The Successful Respondent must make payment within thirty (30) days of TWC's demand. In the event the Successful Respondent fails to pay within the thirty (30) day period, TWC may utilize the option to withhold any additional payments. Failure to pay assessed liquidated damages within the designated time frame may be deemed by TWC to be a breach of contract.

6.10.3 Specific Liquidated Damage(s)

TWC may assess liquidated damages in the following situations:

a. If Successful Respondent breaches the agreement in a way that renders the trainings unsafe, uninhabitable, unfit for the intended purpose, or necessitates a change in venue, and fails to cure within a reasonable time so that TWC must obtain alternate accommodations, TWC is entitled to recover liquidated damages from Successful Respondent in the amount of five hundred dollars ($500.00) to cover the difference in the cost associated with obtaining the alternative accommodations. This amount represents a reasonable and agreed upon estimate of damages that TWC would suffer due to the breach.

b. If Successful Respondent breaches the agreement with regard to providing the training requested under this Solicitation and fails to cure within a reasonable time, TWC is entitled to recover liquidated damages from Successful Respondent in the amount of five hundred dollars ($500.00) to cover the difference in the cost of obtaining alternate training and any associated expenses. This amount represents a reasonable and agreed upon estimate of damages that TWC would suffer due to the breach.

If liquidated damages are assessed, they are in addition to any actual damages sustained by TWC.

6.11 Changes in Ownership

The Response must include a certification that the entity is not for sale or to become acquired by another business entity during the twelve (12) months following the Response Deadline.

During the term of the Contract or any extension or renewal thereof, the Successful Respondent shall notify TWC in writing of any substantial change in the ownership or control of the Successful Respondent as soon as possible, but no later than thirty (30) days prior to its occurrence.

6.12 SEVERABILITY

If any provision or portion of this Solicitation is illegal, void, or unenforceable, the other provisions will not be affected.

6.13 HISTORICAL COMPENSATION

Historical compensation under Contracts for similar goods or services and similar scope and size to this Solicitation has ranged from $125,000 to $150,000 per fiscal year. TWC reserves the right to adjust any projected amount based on funding during the term of a resulting Contract.

END OF RFP